

Reforming the Courts

As we have seen, the family court system is composed of many parts. This chapter will discuss ideas for reform concerning the courts—the judges and lawyers who practice in family courts, and the kinds of procedures they employ. The next chapter will propose reforms for other parts of the family court system.

There are several general areas of malfunction that inhere in the family courts. One concerns the secrecy of proceedings—the unavailability of critical parts of the process to the litigants (particularly protective mothers), and the various rules barring public access and review of the proceedings. Another area desperately in need of reform is the set of rules and laws by which a mother can lose custody of her child without even knowing that a court action is proceeding against her, such as when a court awards a change of custody to a father who claims his ex-wife is a “flight risk” and therefore need not be notified of his petition. A further area of concern is the use of punitive measures against mothers who report suspicions of child sexual abuse, converting child custody into a sort of judicial football. The abuse of contempt powers by judges is a closely related problem. Finally, there is the role of family court judges themselves—so far the least scrutinized and most poorly supervised judges in the United States.

Some of the reforms we advocate involve changes in the laws and rules governing family court procedure. Although these are promulgated by each individual state, we believe that reforms in these laws and

rules do not necessarily have to be achieved one state at a time. Rather, reform can be effected at one point—namely, at the level of federal legislation. This is because under the federal Child Abuse Prevention and Treatment Act (CAPTA),¹ the federal government provides funding to the Child Protective Services (CPS) of each state, provided that the state meets certain standards, including the adoption of certain procedures specified in the act. Therefore, amendments to CAPTA can be enacted that would require the states to adopt the reforms urged here on pain of losing their federal support. This will effectively ensure compliance with all such federally established guidelines. In fact, we have previously urged precisely this approach to family court reform.²

SECRECY OF PROCEEDINGS

We propose several reforms aimed at removing the cloak of secrecy from family court proceedings. Secrecy, in theory, exists to protect victims. In practice, it generally protects the guilty—particularly family court personnel guilty of malfeasance. It has long been recognized that secrecy contributes to abuses of proper legal norms. This is why criminal defendants are generally guaranteed public trials.

The first and most obvious target of these reforms is the “confidentiality” rule under which family courts seal the proceedings and records of most cases involving an allegation of child sexual abuse. It is difficult to believe that these rules have ever really helped their intended beneficiaries. The contrary is more often true, because freedom from public scrutiny allows family court judges and child protective service agencies to make decisions that would result in public outrage if they were better known. As one well-placed state government source told one of us, “If you’re working for the city and you dump a load of cement in the street, everybody can find out about it. But if the same government messes up a child’s life, it’s secret, and that’s why people get away with it.” This

succinctly explains why the confidentiality rules should be scrapped in child abuse cases.

These rules do not protect children. There is no evidence that abused children need to be screened from the public any more than adult rape victims do, yet rape trials cannot be sealed. On the other hand, there is extensive evidence that secrecy harms children. The protective mother of a child who was repeatedly bullied in secret interviews by the family court judge (who refused to credit her reports of abuse) testified to a state legislative committee that she did not believe the judge could have behaved so outrageously had the transcripts of his closed-doors interviews with the child been available to the public.³ But they were sealed—supposedly for the child’s “protection.”

Confidentiality rules are unnecessary. By informal agreement, news organizations almost universally withhold the names of rape victims in their reports, as well as the names of certain other people whose need for privacy is obvious. This informal system, coupled with open trials, could function just as well in child abuse cases. It simply has never been tried.

Finally, confidentiality rules are hypocritical. One notorious New York family court judge actually distributed to numerous reporters unsolicited copies of a decision he wrote in a case alleging child abuse. When one of us investigated the case, more than one official of the CPS agency involved refused to divulge any specific information about the case, claiming it was “confidential”; but they did not hesitate to claim that the child’s mother, who had supported the allegation of abuse by the father, was “mentally ill” (a claim not supported by the record in the case). On another occasion, a reporter inquiring into a case in which a mother had lost temporary custody of her child after accusing the father of sexual abuse was told by the child’s law guardian that a court-appointed psychologist had recommended the child’s removal from the mother. After the reporter tried to contact the psychologist for confirmation, the law guardian admitted that this was not so. (The law

guardian also misrepresented facts about the CPS petition in the case.) As these instances suggest, “confidentiality” has not meant confidentiality for protective mothers, nor protection for their children; it has only emboldened family court personnel to slander protective mothers, since they may reasonably assume in most cases that their statements cannot be checked.

It is logical that records of all family court proceedings should be available to the press and the general public, just as the records of other court proceedings are. The press may choose not to print the names of child victims, just as it routinely withholds names of adult rape victims. Why must cases involving minors involve a radical reversal of the general principle that secrecy invites misconduct? Can it really be said that children benefit from secrecy while rape victims and criminal defendants do not?

Sometimes a litigant before a family court tries to share the proceedings with the press. On many such occasions, family courts insulate themselves from public review by issuing “gag” orders, specifically barring mothers from describing any court proceedings to a third party. The (usually cynical) rationale for this is the “best interest of the child,” who may allegedly be embarrassed by publicity; the real reason is more likely the desire for secrecy, and the real beneficiaries are bad judges. New Jersey activist attorney H. Joan Pennington testified before the House Judiciary Committee in 1992 that “gag orders are commonplace in these [protective parent] cases, supposedly to protect the children. In fact, such orders and files that are sealed are used to keep the public from being informed about the inequities rampant in the system.”⁴ In many cases judges have extended the force of such orders by warning mothers not even to talk about their cases to other mothers or to advocates. Mothers have been frightened to speak in front of support groups for fear that news of this might reach the judge. Such orders probably violate the First Amendment; they certainly do not protect children and should be abolished.

That family court secrecy is not really meant to benefit children is evident from the fact that the secrecy extends even to protective mothers who are directly involved in family court litigation. As we have seen, family court judges often hold private sessions with an allegedly abused child, barring the child's mother, and her attorney, from the private session. While in theory this is done to protect the child from the intimidation of the courtroom setting, we have shown that judges insulated from the eyes and ears of a protective mother's lawyer can be more intimidating, threatening, and downright abusive to a child reporting abuse than any trauma he or she is likely to encounter in a courtroom. Again, secrecy makes this possible—secrecy not only from the general public but from a child's parent. Amazingly, in some states (e.g., New York) family court judges can even seal the transcript of an in-chambers interrogation from the child's mother, even if the judge relies on this in reaching his conclusions concerning whether the child was abused or was being "harmed" by a mother who believed the child's report. This means that a mother may lose custody of her child—even visitation rights—on the strength of "evidence" she and her lawyer are never allowed to see. It is impossible to imagine a justification for this direct attack on constitutional principles of due process.

We propose, in general, the abolition of such private conferences in all child abuse and neglect proceedings; even in custody proceedings they should not be permitted unless all parties consent. If there are any extraordinary conditions that could really justify questioning a child outside the presence of the parents' lawyers, such circumstances must be closely defined by statute, and when a court finds them to be present, this must be stated clearly by the court on the record, with reasons. And never, under any circumstances, should the transcript (and tape recording, if it exists) of such an interview be sealed from a parent.

Another aspect of family court secrecy is the fondness of so many family court judges for off-the-record conferences. These conferences are not recorded by transcribers, and no official record of them is ever

generated. But they can have momentous effects on a family court case. What is more, these conferences are often off-limits to the parties themselves, so that mothers learn what happened only afterward and only secondhand. We have commonly found that these conferences include critical events in a family court case: judges state conclusions before hearing the evidence; lawyers exchange “evidence” informally with the judge; law guardians and parents’ counsels reach “understandings.” In effect, many a family court case is decided in off-the-record conferences; yet a mother can never prove, afterward, what actually happened.

To take a single example: in a New York case, after a child reported being abused by her father, the case came before a family court judge. He met privately, off the record, with the lawyers, and insisted—for some reason never stated on the record—that the mother agree to have her child “remanded” to the Commissioner of Social Services. Although no one explained to the mother what this meant, it in fact enabled the judge to remove the six-year-old girl from her mother’s custody a few weeks later without even holding the legally required hearing that must take place when such issues as changing custody are made. (The child was eventually moved into the father’s custody, and evidence that he might have sexually abused the girl was systematically suppressed.) The mother’s lawyer later told his client, remorsefully, that he had agreed to this bizarre procedure only because he was threatened: he was told that if he did not agree, the child would be taken from her mother’s home that very day and placed into foster care. But there was never any record of this, since it all took place in an “unofficial” conference.

Such proceedings are improper and should be stopped. Anything that has a bearing on the conduct or outcome of a case should be on the record. And all parties have a right to be present at all on-the-record proceedings.

Finally, in any case in which a judge uses private proceedings to intimidate or threaten a child or parent, this should be grounds, in and of itself, for disqualifying the judge from further participation in the case.

(The issue of judicial disqualification will be discussed later in this chapter.)

SURPRISE REMOVALS / CHANGES OF CUSTODY

As we have seen, one of the most consistently outrageous features of family court dysfunction is the ease with which protective mothers can lose custody of a child without even knowing a court proceeding to take or change custody is under way. This evil can be cured through several direct reforms.

First, no state should permit a change of custody from one parent or guardian to the other on the basis of an *ex parte* hearing—that is, a hearing of which one parent or guardian does not receive notice. At the present time, there are states, including California, that permit such changes without notification to the other parent.⁵ In theory, these changes are only temporary, and they require evidence that the custodial parent is about to go into hiding with the child or flee the jurisdiction. But the laws are rampantly abused; mothers with no opportunity to defend themselves are routinely labeled “flight risks” if they have accused a father of abuse, and “temporary” changes of custody can quickly become permanent. Indeed, placing a child in the custody of a parent accused of abusing them generally has the effect of silencing the child’s complaints of being abused and thus can lend apparent support to the alleged abuser’s claim that he is being falsely and maliciously accused. In this way, many a protective mother has lost custody of her child for good.

It is true that some sort of mechanism must exist by which the relevant government agency can seek the emergency removal of a child from a home in which the child’s life or safety is genuinely threatened. But two important limitations on this power must be stressed. First, such a removal must never be confused with a procedure for determining child

custody as between parents. In other words, an emergency removal means a temporary placement of an endangered child in a safe and neutral setting—the state should not be allowed to move a child from one parent to the other until the parents have at least been notified of the court proceeding and have had an opportunity to appear. Second, the state must be required to prove the existence of a genuine emergency, such that notice to the custodial parent is simply impossible or would be dangerous to the child. The meaning of “emergency” should be spelled out in the state’s laws and must not be presumed in vague formulas about “parental alienation” and so forth. State law should specify that a parent’s mere belief that a child has been abused is never, in and of itself, grounds for a temporary or emergency removal.

A court order granting an emergency removal must reflect the seriousness of its consequences. When a family court grants the state’s request for an emergency removal (whether or not at an *ex parte* hearing), the court must state in a written order, with specificity, the nature of the emergency and the evidence on which the finding of emergency was based. When such an order is *ex parte*, and a parent who was not given notice of the effort to remove the child is afterward able to demonstrate that notice in fact could have been given (without posing an undue risk to the child), the removal ordered pursuant to the *ex parte* hearing should be automatically invalidated, and a new hearing must be held on notice to both parties.

There is another loophole in the laws that allow “emergency” removal orders that must be plugged in order to protect the rights of custodial parents, particularly protective mothers. All states theoretically require that when a parent has lost a child without a hearing, that parent is entitled to a prompt hearing to seek the return of the child until a final determination can be reached. However, in case after case, protective mothers are effectively denied this right, bullied by judges and lawyers who tell them that insisting on this procedure will only delay the proceedings—and then, after learning the hard way that the system

has no intention of giving them a prompt trial in any event, are told that they “waived” the right to seek the child’s return by not seeking it immediately.

This catch-22 must be banned. State laws should specify that a parent or guardian’s right to seek the return of a “temporarily” removed child—as well as the parent’s right to a court hearing when a child is removed without one—*cannot* be waived. Rather, a request for the return of a temporarily removed child may be made at any time, so long as the parent can show that the child does not face imminent danger if returned to their home. In addition, the state should be required, at regular intervals until a final determination can be made by the court, to present evidence that continued removal of the child from the parent’s home is necessary for the child’s safety—otherwise the child should be returned automatically.⁶ Moreover, “return” hearings, once demanded, must be heard and decided with all possible speed; in addition, a parent should be entitled to an emergency appeal of any removal order on the ground that it was not procedurally proper or that no proper emergency was established. (And if the appeals court upholds the removal, it must state, in writing, the reasons no procedural impropriety was found and an adequate basis for a finding that an emergency existed.)

In addition to these reforms, some of the abuses described in this book make it clear that a statutory clarification is needed of at least one other civil rights issue. It is clear that, in the system as it exists, children can be removed from their mothers on the basis of fundamentally flawed CPS petitions—petitions that fail to state any competent evidence or that violate basic norms concerning the statutory basis or the required service and attestation of such petitions. Yet, even when such petitions are revealed as legally invalid, family court judges have allowed their consequences to stand—thus permitting state agencies to force mothers to submit to illegal evaluations, to pressure them into waiving their legal rights, and to continue to hold children outside their homes without meeting the required legal standards.

This should be explicitly rejected by statute, since otherwise it appears that family courts will continue to rely on facially invalid CPS petitions whenever it suits them to do so. The law should provide that if a petition on which a removal is based is determined later to be legally invalid (e.g., because the accused's civil rights were violated or because the required statutes were not followed), the removal resulting from the petition must be reversed automatically, with the child automatically being returned to its home. If CPS officials want to make new accusations against a parent after an illegal removal, they must start over, with a new petition, to be evaluated *de novo* by a court. This will protect the constitutional rights of all parents accused of abuse or neglect against the use of invalid petitions to gain control over their lives—and those of their children.

PUNITIVE RULINGS

We have seen, throughout this book, how family courts use rulings on custody and visitation as punitive measures to “discipline” mothers—and their attorneys and expert witnesses—who offer accusations or evidence of sex abuse by fathers. This practice is obviously wrong, and it is so common that it should be explicitly banned by statute.

To begin with, states should adopt specific language in the statutes governing custody, abuse, neglect, and visitation to the effect that a good-faith report or allegation by a parent or guardian that a child has been abused cannot be used as grounds for charging that parent or guardian with child abuse or neglect, nor as grounds for determining custody and/or visitation. This would give practical effect to the laws that already exist in many states that promise “immunity” to anyone who makes a report of suspected abuse, unless the report can be shown to be made maliciously. These laws protect nonparents from being sued for damages by someone they have accused of abuse, if that report is

not ultimately confirmed by a court. However, *mothers* who report suspicions of abuse are not immune from the kinds of legal action that threaten them most: they can lose their children either to foster care or by means of a change of custody, even when their report was made in good faith. The reform we propose would change that. As previously stated, this could be required by CAPTA as a prerequisite to a state's receipt of federal funds.

Something along these lines has already been enacted into law in California. In October 1999, California adopted an amendment to its Family Code⁷ that provides:

No parent shall be placed on supervised visitation, or be denied custody of or visitation with his or her child, and no custody or visitation rights shall be limited, solely because the parent (1) lawfully reported suspected sexual abuse of the child, (2) otherwise acted lawfully, based on a reasonable belief, to determine if his or her child was the victim of sexual abuse, or (3) sought treatment for the child from a licensed mental health professional for suspected sexual abuse. (b) The court may order supervised visitation or limit a parent's custody or visitation if the court finds substantial evidence that the parent, with the intent to interfere with the other parent's lawful contact with the child, made a report of child sexual abuse, during a child custody proceeding or at any other time, that he or she knew was false at the time it was made. Any limitation of custody or visitation, including an order for supervised visitation, pursuant to this subdivision, or any statute regarding the making of a false child abuse report, shall be imposed only after the court has determined that the limitation is necessary to protect the health, safety, and welfare of the child, and the court has considered the state's policy of assuring that children have frequent and continuing contact with both parents as declared in subdivision (b) of Section 3020.

Whether this reform has had the intended effect is debatable. Some observers in California maintain that family courts have so far ignored it. Moreover, the new law does not specify that its effect should be retroactive, and the family courts have refused to give it such effect, which means they have not reconsidered any of the cases in which mothers have *already* lost custody for making good-faith reports of abuse. In one case discussed in Part II, for instance, a mother lost not only custody but all contact with her children because she reported suspected abuse by the father, even though the court never concluded that the mother knew the reports to be false or intended them solely as a means of interfering with the father's rights.

In that case, and in two others like it, the aggrieved mothers sought to regain custody after the passage of the new law. In each case, the judge refused to apply the law retroactively. Therefore, the children in these cases (and other similar cases) remained in the custody of their alleged abusers, and the children's contact with their mothers was still subject to restrictions.

In light of this, protective parent advocates have proposed a further amendment to the law, as follows:

§ 3027.5(c): Upon proper filing of a Notice of Motion or Order to Show Cause, the court shall conduct a review of any custody order made prior to January 1, 1999, in which the moving party alleges that the current custody order imposes supervised visitation, or limits or denies custody to a parent based, in whole or in part, on an allegation or finding that the parent had alienated a child from the affections of the other parent, engaged in conduct not in the child's best interests, or caused a child emotional abuse, and the underlying conduct consisted of (1) lawfully reporting suspected sexual abuse of the child, (2) otherwise acting lawfully, based on a reasonable belief, to determine if his or her child was the victim of sexual abuse, includ-

ing questioning a child about suspected sexual abuse, or (3) seeking treatment for the child from a licensed mental health professional for suspected sexual abuse. If, upon review, the court determines that the prior court order was based, in whole or part, on these allegations or findings and such underlying conduct, the court shall conduct a custody hearing, *de novo*, to determine the custody plan which would be in the best interests of the child(ren), in accord with subdivisions (a) and (b), above and other relevant statutes and case law related to the best interests of the child(ren).

It is typical of the warped state of America's family court system that this measure—clearly intended to remedy cases whose tragic results were based on procedures *already* renounced by the state legislature—encountered stiff opposition from establishment-oriented voices. While the new proposed amendment was supported by the Legislative Coalition to Prevent Child Abuse, the California Alliance Against Domestic Violence, the California Protective Parents Association, the California National Organization for Women, Child Abuse Solutions, Inc., the County Welfare Directors Association of California, the Domestic Violence Center of Santa Clarita Valley, and the State Commission on the Status of Women, it was opposed by the powerful California Judges' Association and the Family Law Executive Committee of the California State Bar.

The reasoning offered by the opponents was depressingly disingenuous: they claimed that the new bill amounted to undue interference with the courts' discretion (even in cases in which judges' decisions had contravened the legal standards set by the legislature in 1999)!

California's example supports our suggestion that a reform protecting parents from punishment for making a non-malicious accusation of sex abuse against the other parent (or anyone else) should be made at the national level. Clearly the existing family court establishment resists such a measure, even though it is unwilling to state openly what this

means: that family courts can and do punish mothers with the removal of their children when the mothers report legitimate suspicions of sex abuse. Given the attitude of the establishment, can anyone doubt the need for statutory reform forcing all states to cure this evil, on pain of losing all federal support?

CONTEMPT POWERS

Family courts are empowered, as are all courts, to hold a recalcitrant litigant in contempt of court. We do not deny the importance of such a power. But we do maintain that it has been grossly abused in family courts.

All too often, “contempt of court” is used as a disingenuous label that masks a court’s illegitimate custody decision. Family courts use their contempt powers to award custody to the “non-offending” parent, as though a change of custody were one of the punishments for contempt. In some cases, this is even done *before* a mother has violated an order—as in the case described in Part II, Chapter 4 of this book, in which an expert claimed that a mother was likely to kidnap her child because, when asked whether she would respect an order that forced her to give unsupervised visits to a father suspected of child abuse, she said, “If I have to be in contempt, I’ll be in contempt.” Even though there was no such order—let alone any violation of such an order—the mother promptly lost her child.

We propose some basic reforms that allow family courts to retain their contempt powers without abusing them.

First, the exact basis of any contempt ruling, criminal or civil, must be spelled out in writing whenever a judge finds a party in contempt of court. Second, the ruling must specify the nature of the order violated, how it was determined that the party was aware of the order, and the opportunity given the party to defend themselves. Moreover, if the party

is being held in civil contempt, they must be given a reasonable opportunity to “purge” themselves. This means that if the court concludes that the party is refusing to obey some order or directive, they must be given a reasonable opportunity to do so before a penalty is imposed. All too often in family courts, even mothers who say they did not intend to violate an order, and are willing to comply once informed, are punished with a loss of custody or visitation without being given an opportunity to correct the behavior frowned on by the court.

The abuse of contempt powers in family courts does not affect only litigants. Judges sometimes issue contempt citations against social workers or other mental health professionals—or threaten to do so—in order to prevent them from making reports of child abuse, or from treating abused children, or from presenting evidence of child abuse in court. We have seen, for instance, how a New York psychiatrist complained that a therapist who worked for a state-funded family therapy clinic, and who was treating a child for the effects of sexual abuse, was threatened by a family court judge that she would be held in contempt if she even attempted to contact the child again.⁸ Such threats cripple the child protection system, for social workers and mental health professionals cannot protect children if they are intimidated from doing their jobs by judges who abuse contempt powers.

Accordingly, we propose the following: each state, in order to continue to receive funding under CAPTA, must require child protective service agencies to challenge a judge’s contempt citation or threat of contempt aimed at social workers and other mental health professionals attempting to make a record of abuse.⁹ After all, intimidation of mental health professionals by judges interferes with the capacity of CPS agencies to perform their legally mandated function. And, on the other hand, CPS agencies can place the power and prestige of the state behind practitioners who otherwise would stand alone before abusive judges. It should be stressed that this measure would *not* require CPS to defend contempt citations, or threatened contempt citations, in all cases—only when the

threatened mental health professional was engaged in good faith in attempting to create or add to a record of abuse. Even if a court ultimately concludes that an allegation of child abuse is unfounded, it is wrong for mental health professionals to be punished with contempt citations for attempting to do their jobs.

REVIEW OF SITTING JUDGES

Judges enjoy virtually unlimited immunity from civil suits, no matter how outrageously they behave on the bench, even when their decisions violate the law. This is because our legal system requires the independence of judges, and a judge who can be sued by a losing litigant can never perform their job in an independent manner. For the same reason, it is very difficult to remove a judge from office.

This, however, only makes it imperative that family court judges—who, as we have seen, so often abuse their authority—be subject to some sort of review. We propose the periodic review of the performance of family court judges by a qualified and independent team of mental health professionals who will then report their findings publicly. Where family court judges are appointed, the review panel will offer advice and comments to the officials who make judicial appointments. In states that elect family court judges, the panel will publish its findings to inform the public.

The same periodic review should be applied to the judicial hearing officer (JHO) as well. JHOs are individuals who are not judges, but who serve as “referees” when appointed to do so by a judge. In that role, the JHO presides over trials, hears motions, and makes decisions exactly as a judge would, except that their decisions are subject to review by the judge who assigned the case to them.

The importance of applying judicial review procedures to JHOs is illustrated by the example of Leon S. Deutsch, a Brooklyn, New York,

family court judge until 1990. Judge Deutsch was notorious for his hostility to women; in cases involving sex abuse allegations, he allegedly ignored evidence of child abuse, misrepresented evidence so as to shift the blame to the protective mothers, browbeat and threatened children who reported being abused, and in one case threatened to hold a therapist in contempt simply for trying to treat a child for the effects of alleged abuse because he, Deutsch, believed the girl was “lying.” In 1990, Deutsch voluntarily stepped down from the bench after a grievance against him was filed by New York State Senator David A. Paterson, who had chaired hearings into family court abuses. (Senator Paterson complained that Deutsch had sent his law clerk, Steven Mostofsky, to his hearing room to intimidate the witnesses who were litigants before Judge Deutsch.) Just a few months after he “retired,” however, Judge Deutsch was suddenly rehired by the state as a JHO. Since he had officially left the bench, Deutsch never had to answer Senator Paterson’s ethics grievance. But he continued to hear and decide exactly the sort of matrimonial cases he had so grievously mishandled in the past.¹⁰ To prevent such occurrences, JHOs should receive the same sort of review we recommend for family court judges.

We also believe that, given the systemic malfunction of the family courts, there is a need for each state to establish a short-term special commission to review the case decisions of sitting family court judges in order to determine whether the rights of allegedly abused children and of protective mothers are being properly protected. We recommend that such commissions be in place for three years, during which time they should release annual reports. These commissions should consist of judges, psychologists (who are not court-appointed experts and therefore not dependent on judicial referrals), and laypersons.

Finally, it should be noted that many states have already established commissions to review gender bias in the courts. We recommend that such commissions should regularly devote part of their efforts to the protective parent backlash. To date, most gender bias studies examine

general issues, such as how judges talk in court to female attorneys and similar issues of decorum. We believe these studies should specifically examine the penalization of mothers (and their lawyers, and sympathetic experts) for bringing sex abuse matters to the courts' attention.

HIGHER COURT REVIEW

Many states permit appeals only from “final” judgments. That is, only trial court orders that completely dispose of a case can be appealed to a higher court. In practice, for protective mothers, this means that when a child is “temporarily” removed from her custody—no matter how illegal the order may be—she cannot appeal the removal until the conclusion of a trial to determine *permanent* custody—which may take years. States that bar nonfinal appeals—“interlocutory” appeals, as lawyers call them—do provide for certain exceptions to the rule, and we propose that temporary child removals or custody changes, challenged on civil rights grounds, be included among the exceptions. Jeremiah B. McKenna, former chief counsel to the New York State Senate Committee on Crime and Correction and a frequent critic of the family court system, stated the simple truth when he said to us that “no order could be more final in an emotional sense than an order removing custody from a mother.” In fact, forcing mothers to wait before appealing such orders is doubly unjust. First, the delay of a year or more that often results if interlocutory appeals are not allowed is an enormous length of time to a small child who has never lived away from their mother, and the harm done by such a separation cannot be undone even if the order is later reversed. Second, by the time an appellate court is asked to review a custody decision, family courts often question whether a sudden return to the mother, once the child has “adjusted” to a new environment, is in the child’s “best interest.” Thus, even if a mother can prove that her child should never have been removed, delay means that she may

not be able to reverse the wrongful removal after proving her case! For these reasons, it is obvious that justice can be served only by allowing immediate appeals of child removal orders.

We further propose that the relevant statutes require the appellate courts to respond to every allegation of the invalidity of a removal order specifically and in writing, giving specific reasons for their holdings. (Some reasons for challenging these removals: the state's failure to give notice to the mother or her lawyer before obtaining the removal; improper exclusion of evidence; lack of a proper evidentiary hearing; false or missing statements in the removal order.)

JURISDICTION OF OTHER COURTS

It may come as a surprise to many readers to learn that while a man or woman who is wrongfully imprisoned can seek relief from the federal courts, a parent whose child has been wrongfully seized generally cannot petition the federal courts for the child's return. This is because the federal courts have created an exception to their jurisdiction known as the "domestic relations" exception, according to which federal courts will not review a "custody decision." Since federal courts generally look at all child placement issues as custody decisions, a mother can seldom vindicate her rights in the same federal court system most victims of state action turn to.

We propose that this be changed when it comes to cases that assert civil rights claims, even if these claims pertain to the removal of a child from his or her home. Custody decisions that involve the weighing of parental skills and so forth are, admittedly, not proper material for the limited jurisdiction of the federal courts. But civil rights complaints against seizures of children by improper agency action or illegal court order are not "custody cases." It is very much within the purview of the federal courts to prevent an agent or agency of a state government, or a

private individual, from withholding a child from a parent without due process of law. Where such a claim is raised, federal courts must be required to exercise their jurisdiction so as to enforce basic constitutional rights. In fact, the close relationship between family courts and the state agencies who carry out the removals (which we have explored in Chapter 6) means that federal courts might well be the better forum to pursue a remedy in such cases—once they were prevented from hiding behind the “domestic relations” exception.¹¹

JUDICIAL TRAINING

We propose that every state require judges to attend judicial training seminars and lectures aimed at dispelling the popular myth that women use sex abuse allegations as a “weapon” to gain custody. In 1992 a Louisiana Court of Appeals Judge Sol Gothard, pointed out that “too many judges have no understanding or knowledge of the dynamics of this [protective parent] problem [and] even worse, they have no compassion or empathy for the child victim.”¹² A year later, H. Joan Pennington expressed her frustration over judicial ignorance: Judges, like everyone else, learn either by study, training, or trial and error. Self-motivated study carries the danger that the student might read only what appeals to them instead of learning the basic information in the field; judges may read fantastic, interesting theories which actually have no basis in fact Rather than learning through self-study, judges might learn through the most trusted method; training by experts in a formal, structured process, using professional teaching methods and curricula [but] judges are rarely required to attend any type of training and so it remains optional.¹³

We propose that such training be made mandatory for judges. It might be useful to ask the judges who take the courses to complete a

questionnaire concerning their relevant knowledge, training, and beliefs.¹⁴

After the judges have completed the course, their responses might be taken again. It is likely that their attitudes toward many fundamental questions concerning child sex abuse allegations will be different from what they were before the course. That would be both a measure of progress and an index of the problems protective mothers have been facing for years at the hands of ill-informed judges.

These training programs will yield particular benefits if they include strong and memorable presentations. For example, it would be useful for judges to hear from parents who have personally suffered from the backlash of the family courts. They should also hear the views of mental health experts who have treated children suffering the injury of sexual abuse—and hear as well from those who have treated known child abusers. It can hardly be stressed too much, or too often, that men who abuse their children do not resemble the monster of popular myth. As one child abuse expert told us, “Men who sexually abuse children are Jekyll and Hyde. And only the abused child sees Mr. Hyde.”

DISQUALIFICATION OF JUDGES

One essential component of any set of effective family court reforms is the protection of litigants from flagrantly abusive family court judges. Experience shows that a biased, hostile, or overtly misbehaving judge cannot simply be instructed to improve. Litigants can get the protection they need only if certain extreme sorts of judicial conduct are not only forbidden but are spelled out in the relevant laws as grounds for disqualifying the judge from further participation in the case in which such conduct occurs.

Such disqualifying conduct should include, at least: (1) refusal to hear evidence of abuse; (2) threatening or punishing a mother with

loss of custody, visitation, or child support for making a claim of sexual abuse; and (3) attempting to coerce a mother into forfeiting basic rights, such as the right to have a decision reviewed by a higher court, in exchange for some sort of favorable ruling.¹⁵

Like other reforms we urge, this one can be effectively enacted nationwide by incorporating it into the Child Abuse Prevention and Treatment Act (CAPTA), 42 U.S.C. §§ 5101 et seq., under which states qualify for federal monetary assistance in preventing and treating child abuse in exchange for meeting eligibility guidelines. CAPTA already forces the states to conform to federal law as a precondition for the receipt of federal funds. Thus, it is necessary only to add to the eligibility requirements specific guidelines such as those we have set out here.¹⁶